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Case Name: *Los Gatos LLC v. The Town of Los Gatos*
Case No.: 25CV467536

The above-entitled action comes on for hearing before the Honorable Theodore C. Zayner on July 29, 2026, at 1:30 p.m. in Department 19. The Court now issues its tentative ruling as follows:

I. INTRODUCTION

This is a petition for writ of mandate and complaint brought by petitioner Los Gatos LLC (“Petitioner”) and respondent Town of Los Gatos (“Respondent”). On December 5, 2025, Petitioner filed the Second Amended Petition (“SAP”) alleging causes of action for: (1) writ of mandate – CEQA determination; (2) writ of mandate – claim that an applicant cannot submit more than one revision; (3) violation of State Housing Laws; and (4) invalidation of housing element.

On March 4, 2026, the Court (Hon. Williams) sustained Respondent’s demurrer to the fourth cause of action without leave to amend and ordered this action reassigned to a designated CEQA judge.² The Court observed,

[T]he First Cause of Action of the SAP is labelled “Writ of Mandate—CEQA Determination” and it seeks a determination that an exemption under the California Environmental Quality Act (CEQA) applies to petitioner’s proposed development project under Public Resources Code section 21080.66. The case thus arises under CEQA despite a notice missing from the case caption so indicating. CEQA cases in this court are assigned to designated CEQA judges per Public Resources Code section 21167.1. Accordingly, this CEQA case will be reassigned to a designated CEQA judge.

(March 4, 2026 Order, p. 3:4-11.) On March 10, 2026, the action was reassigned to the undersigned in Department 19.

At issue is Respondent’s motion to dismiss the first cause of action on the ground that Petitioner failed to timely request a hearing as required under Public Resources Code section

² The Court takes judicial notice of the record on its own motion. (Evid. Code, § 452, subd. (d).)

21167.4, subdivision (a). Petitioner filed a timely written opposition, and Respondent filed a timely written reply.

II. MOTION TO DISMISS

Respondent bases its motion to dismiss on Public Resources Code section 21167.4, subdivision (a), which provides:

In any action or proceeding alleging noncompliance with this division, the petitioner shall request a hearing within 90 days from the date of filing the petition or shall be subject to dismissal on the court's own motion or on the motion of any party interested in the action or proceeding.

Thus, “a CEQA action must be dismissed when a timely request for hearing is not filed, provided that a motion is made by any interested party or the court.” (*Fiorentino v. City of Fresno* (2007) 150 Cal.App.4th 596, 603.) CEQA, however, does not categorically bar relief under Code of Civil Procedure section 473. (*Comunidad en Accion v. Los Angeles City Council* (2013) 219 Cal.App.4th 1116, 1132 (*Comunidad*).) Courts have only provided relief for the failure to properly request a hearing under Public Resources Code section 21167.4 when the failure constituted excusable error. (*Ibid.* [collecting cases].)

III. DISCUSSION

Respondent asserts that pursuant to the March 4, 2026 Order, the first cause of action for CEQA determination arises under CEQA and is subject to the 90-day hearing requirement of Public Resources Code section 21167.4, subdivision (a). Petitioner filed the SAP on December 5, 2025, and therefore, had until March 5, 2026 to file a written request for hearing.

Petitioner contends that its first cause of action alleges that Respondent violated the Housing Accountability Act (“HAA”) as codified in Government Code section 65589.5, therefore Public Resources Code section 21167.4 does not apply. Petitioner argues in the alternative that relief under Code of Civil Procedure section 473, subdivision (b) is warranted.

a. Allegations of the SAP

According to the SAP, Petitioner's project is a “builder's remedy project” that is CEQA-exempt under Public Resources Code section 21080.66. (SAP, ¶ 64.) A builder's remedy project is “a housing development project that provides housing for very low, low-, or

moderate-income households” and is subject to various criteria. (Gov. Code § 65589.5, subd. (h)(11).) Public Resources Code section 21080.66 provides that a housing project is CEQA-exempt if it meets various conditions concerning the size, location, consistency with general plan or zoning laws, and other factors. (Pub. Resources Code § 21080.66, subd. (a).)

Petitioner’s first cause of action specifically alleges that a writ of mandate should issue ordering Respondent to comply with Public Resources Code section 21080.66 because Respondent’s policy of imposing environmental impact reports (EIR) on every builder’s remedy project is in violation of CEQA. (SAP, ¶¶ 90-91.) The first cause of action does not allege violation of the HAA.

Petitioner’s opposition focuses on Government Code section 65589.5, subdivision (h)(6)(J), which defines the phrase “disapprove the housing development project”, in relevant part, as failing to make a determination of whether the project is exempt from CEQA. The SAP does not allege that Respondents failed to make a determination, only that Respondent’s determination was incorrect. (SAP, ¶¶ 66, 90.) The SAP also does not allege noncompliance with Government Code section 65589.5, subdivision (h)(6)(J). Accordingly, the first cause of action for CEQA determination cannot be read as charging Respondent with violating the HAA. In any event, to the extent Petitioner intends to allege violation of the HAA, these allegations are encompassed in Petitioner’s third cause of action for violation of State Housing Laws. (SAP, ¶ 115 [alleging Respondent’s noncompliance with HAA].)

b. Application of Code of Civil Procedure Section 473, Subdivision (b)

Code of Civil Procedure section 473, subdivision (b) provides, in relevant part:

The court may, upon any terms as may be just, relieve a party or the party’s legal representative from a judgment, dismissal, order, or other proceeding taken against the party through the party’s mistake, inadvertence, surprise, or excusable neglect.

A party seeking relief under Code of Civil Procedure section 473 based on mistake or inadvertence of counsel must show that the mistake, inadvertence, or general neglect was excusable. (*Comunidad, supra*, 219 Cal.App.4th at p. 1132.)

Petitioner argues that relief under Code of Civil Procedure section 473, subdivision (b) is warranted because neither counsel nor the Court treated this action as arising from CEQA until the eve of the 90-day deadline. This argument is also unpersuasive. As Respondent points out, Petitioner and its counsel are in the best position to know whether the action alleges noncompliance with CEQA. Petitioner provides no authority for the proposition that its reliance on a court's case management schedule and treatment of the case constitutes excusable error. (*United Grand Corp. v. Malibu Hillbillies, LLC* (2019) 36 Cal.App.5th 142, 153 [court may disregard conclusory arguments that are not supported by pertinent legal authority or fail to disclose the reasoning by which the appellant reached the conclusions he or she wants us to adopt].)

As noted above, after the Court issued its ruling on March 4, 2026, Petitioner had at least one additional day to file a written request for hearing or object to the CEQA designation. Petitioner did not do so. And despite representing in its Code of Civil Procedure section 473 motion for relief that a written request would be concurrently filed, Petitioner has not yet filed this request. (Motion for Relief, filed 7/10/2026.) This is not a case of excusable neglect that warrants relief under Code of Civil Procedure section 473. (See *Comunidad, supra*, 219 Cal.App.4th at p. 1132 [finding excusable neglect due to family emergency, inadvertent failure to place date on calendar]; *Hopkins & Carley v. Gens* (2011) 200 Cal.App.4th 1401, 1412-1413 [noting honest mistake of law on a complex debatable problem can provide ground for relief, but not where record shows "ignorance of the law coupled with negligence in ascertaining it."]; *Zamora v. Clayborn Contracting Group, Inc.* (2002) 28 Cal.4th 249, 258 (*Zamora*) ["Conduct falling below the professional standard of care, such as failure to timely object or to properly advance an argument, is not therefore excusable."])

Given the foregoing, the Court declines to reach Petitioner's remaining argument that relief should be granted because Respondent has not been prejudiced by the delay. (*Zamora, supra*, 28 Cal.4th at p. 258 ["Where the mistake is excusable and the party seeking relief has been diligent, courts have often granted relief pursuant to the discretionary relief provision of section 473 if no prejudice to the opposing party will ensue."])

IV. CONCLUSION

Respondent's motion to dismiss Petitioner's first cause of action for writ of mandate – CEQA determination is GRANTED.

Respondent shall prepare the order after hearing under California Rules of Court, rule 3.1312.

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Case Name: *Berlin Thomas v. Forty Niners Stadium Management Company*
Case No.: 25CV473118

The above-entitled action comes on for hearing before the Honorable Theodore C. Zayner on July 29, 2026, at 1:30 p.m. in Department 19. The Court now issues its tentative ruling as follows:

V. INTRODUCTION

This is a putative class and representative action arising from alleged wage and hour violations. On August 19, 2025, plaintiff Berlin Thomas (“Plaintiff”) initiated this action by filing the operative Complaint alleging the following causes of action against Defendant Forty Niners Stadium Management Company LLC: (1) failure to pay minimum wage; (2) unpaid overtime; (3) meal break violations; (4) rest break violations; (5) wages not timely paid during employment; (6) wage statement violations; (7) untimely final wages; (8) failure to reimburse necessary business expenses; and (9) unfair and unlawful business practices.

At issue is Defendant’s motion to compel individual arbitration, strike class allegations, and stay civil court proceedings. Plaintiff filed written opposition, and Defendant filed a written reply.

VI. PROCEDURAL ISSUES

a. Motion to Strike Class Allegations

Defendant seeks to strike the class claims as irrelevant or improper under Code of Civil Procedure section 436 because Plaintiff agreed to resolve all disputes through arbitration on an individual basis. The Court notes that the arbitration agreement does not contain a class waiver. Nevertheless, the Court declines to address the motion to strike class allegations because Defendant’s motion to compel arbitration and motion to strike class allegations should have been filed as two separate motions. Moreover, Defendant failed to give proper notice for its motion to strike. “A notice of motion to strike a portion of a pleading must quote in full the portions sought to be stricken except where the motion is to strike an entire paragraph, cause of action, count, or defense. Specifications in a notice must be numbered consecutively.” (Cal. Rules of Court, rule 3.1322, subd. (a).)